

25SMCV05140 25SMCV05140

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F30%2F2026

Source SHA-256: fd4e02484cc2c6b691e83cc96d42d7eebc48c4611cc186f5f81e4e4a51025e8e

Case Number: 25SMCV05140 Hearing Date: July 30, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

30, 2026

CASE NUMBER

25SMCV05140

MOTION

Motion

for Summary Judgment

MOVING PARTY

Defendant Golden State Water Company

OPPOSING PARTY

none

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment; Memorandum of Points and Authorities

Separate

Statement of Undisputed Material Facts

Compendium

of Evidence

OPPOSITION PAPERS:

Notice of Plaintiffs'

Non-Opposition to Defendant Golden State Water Company's Motion for Summary Judgment

BACKGROUND

This case arises from allegations that Plaintiff tripped over a raised portion of public sidewalk, due to tree roots/shrubbery.

On October 1, 2025, Plaintiffs Robert Ronald Romig and Cami Noel Swanson Romig ("Plaintiffs") brought suit, alleging that Robert tripped and his wife, Cami has suffered a loss of consortium due to Robert's injuries.

Plaintiffs allege six causes of action against Defendants City of Culver City ("City"); County of Los Angeles ("County"); Golden State Water Company ("Golden State"); and Mollica Group Properties, LLC ("Mollica") for (1) Dangerous Condition of Public Property; (2) General Negligence; (3) Premises Liability; (4) General Negligence; (5) Premises Liability; and (6) General Negligence – Loss of Consortium. Only the Second, Third, and Sixth causes of action are alleged against Golden State.

Golden State now moves for summary judgment on the ground that it has never owned, possessed, or otherwise exercised control over the incident site, and therefore owed no duty in negligence or premises liability. Plaintiffs have affirmatively filed a notice of non-opposition to Golden State's motion.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.]

There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

DISCUSSION

1. DUTY

The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury. The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998, citation omitted.) “Those who own,

possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm." (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.)

"It is generally true that a person is liable for injuries to another only as a result of his or her own conduct. Liability is based not on responsibility for the conduct of others, but on the failure of the landowner or occupier to act reasonably under the circumstances when he or she has reason to anticipate the probability of injury and has an opportunity to prevent the injury or warn of the peril. Thus, liability is based on his or her own failure to act reasonably." (Cody F. v. Falletti (2001) 92 Cal.App.4th 1232, 1242 [cleaned up]; Delgado v. American Multi-Cinema, Inc. (1999) 72 Cal.App.4th 1403, 1406, fn. 1 ["premises liability alleges a defendant property owner allowed a dangerous condition on its property or failed to take reasonable steps to secure its property against criminal acts by third parties"].)

Here, Golden State argues it has never owned, possessed, or otherwise controlled the incident site. In support, Golden State advances the following evidence:

- Plaintiff Robert alleges on December 30, 2024, he tripped, fell, and was injured on a raised portion of sidewalk located at 3938 Van Buren Place in Culver City on the northeast side of Van Buren Place. (UMF No. 1.)

- Plaintiff Cami alleges a loss of consortium resulting from Robert's injuries. (UMF No. 2.)

- Golden State has never owned, possessed, maintained, managed, operated, inspected, leased, or otherwise exercised control over the incident site. (UMF No. 3.)

- Golden State's nearest equipment to the incident site is a water meter box between 11 and 12 feet away, with three sidewalk panels in between the meter box and the incident site. (UMF No. 3.)

- Golden State has no water mains or water

lines under the incident site. (UMF No. 3.)

Neither Golden State, nor any persons or entities acting under its direction or control created the alleged dangerous condition at the incident site, and Golden State has never contracted with or otherwise caused any party to perform any work on the incident site, including the surrounding sidewalk. (UMF No. 4.)

Therefore, Golden State has met its initial prima facie burdens of production and persuasion to demonstrate that it never owned, possessed, otherwise controlled the incident site, or caused or contributed to the condition of the sidewalk that caused Robert to trip. As such, the burden of production shifts to Plaintiffs.

However, Plaintiffs have not opposed the motion, and thereby they have failed to meet their burden of production to raise triable issues of material fact.

CONCLUSION AND ORDER

The Court finds that Golden State has met its initial prima facie burdens of production and persuasion to demonstrate that it owed no duty of care to Plaintiffs, and Plaintiffs have not opposed the motion to create a triable issue of material fact. Accordingly, the Court grants Golden State's unopposed motion for summary judgment.

Further, the Court orders Golden State to file and serve a proposed Order and proposed Judgment in conformity with the ruling on or before August 7, 2026.

Golden State shall provide notice of the Court's ruling/Orders, and file the notice with a proof of service forthwith.

DATED: July 30, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court